

25NWLC72018 25NWLC72018

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-21

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Case Number: 25NWLC72018 Hearing Date: July 21, 2026 Dept: Y

25NWLC72018: LVNV FUNDING LLC vs CHRIS RAINWATER

Tentative Ruling - No Appearance will be made by Defendant:

The Court has read and reviewed the Amended Motion to Vacate Entry of Default and to Deem Answer Filed, which was filed by Defendant Chris Rainwater ("Defendant") on February 25, 2026. The Court has also reviewed all relevant court records. No opposition has been filed by Plaintiff LVNV Funding LLC ("Plaintiff").

Defendant has also requested to have the Court rule on his Motion without an appearance due to an unavoidable professional conflict. The Court grants that request and rules as follows:

The Court notes that Plaintiff filed a Request to Enter Default on February 18, 2026, which was entered by the Clerk on the same day. On April 1, 2026, the Court denied Plaintiff's request to enter Default Judgment.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on December 28, 2025 creating a presumption of service under Evidence Code section 647. Defendant's declaration, which was signed under penalty of perjury, states that he became aware of this lawsuit when he found documents on his doorstep after returning from doing laundry. He states that no documents were personally delivered to him and he did not refuse service. He also states, under penalty of perjury, that he does not match the description of the person described in the proof of service. He prepared and submitted an Answer to the Court on February 14, 2026, but it was rejected because default had already been entered by the Clerk four days earlier.

Pursuant to Code of Civil Procedure section 473(b), the Court may, upon any terms as may be just, relieve a party from a judgment taken against the party through "the party's mistake, inadvertence, surprise or excusable neglect." Here, Plaintiff failed to file a responsive pleading prior to the entry of default as a result of his "mistake, inadvertence, surprise or excusable neglect."

The law favors judgments on the merits. *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981. Thus, on a motion for relief from default, "doubts must be resolved in favor of relief, with an order denying relief scrutinized [on appeal] more carefully than an order granting it." *LaSalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.

The Court will deem the Answer submitted by Defendant as filed as of today's date.

The non-jury trial scheduled for December 3, 2026 remains on calendar.

Clerk to give notice.